

112	Robicheaux v. Rowshan, 2022-01261647	DEMURRER TO ANSWER – OVERRULED Defendants and Cross-Complainants Kasra Rowshan, Newport Care Medical Group, Inc., Newport Care MSO, LLC, Linden Properties, LLC, Old Newport Group, LLC, and Top Surgical, LLC demur to all twenty four affirmative defense in Plaintiff and Cross-Defendant Grant Robicheaux’s First Amended Answer to the Second Amended Cross-Complaint. The court could deny the demurrer as untimely. (CCP, §§ 12a(a), 471.5, & 1010.6(a)(3)(B).) The Court will instead exercise its broad discretion to consider the demurrer, and the opposition thereto, which also appears to have been filed late. On the merits, with regard to the general demurrer to all affirmative defenses on grounds on they fail to plead ultimate facts, or do not specify to which cause of action they are directed, “[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Id.) There can be no serious argument that the parties do not have notice of the claims and defenses being asserted. With regard to the argument that Plaintiff/Cross-defendant is judicially estopped from asserting the 24th affirmative defense of release, the Court has never accepted as true Robicheaux’s argument that the “Release does not apply to the disputed allegations.” Rather, the Court has only determined that such a conclusion would be a fact that must be determined by the jury. As such, the affirmative defense of release is not barred by the doctrine of judicial estoppel. Moving party to give notice.
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113	Salemi v. First National Bank Texas, 2025-01536388	MOTION FOR RECONSIDERATION – DENIED Plaintiff Brian Thomas Salemi (“Plaintiff”) moves for reconsideration of the Court’s order granting defendant First National Bank Texas dba First Convenience Bank’s (“Defendant”) Motion to Compel Arbitration. Code of Civil Procedure section 1008(a) provides: “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” “According to the plain language of the statute, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’ ” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) “A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.” (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.) Plaintiff argues that new and different facts and circumstances show that Defendant failed to prove the existence of a valid agreement to arbitrate. Plaintiff contends that the driver’s license number on the Signature Card for the subject account is not his driver’s license number and Defendant has provided no evidence proving who presented the invalid identification. Plaintiff contends Defendant has not produced competent evidence proving that it was Plaintiff who used fraudulent identification and signed the Signature Card or knowingly assented to arbitration. Plaintiff contends that Defendant’s own fraud theory presents
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